

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No. 46461/2025

Muhammad Ashraf

Versus

Sui Northern Gas Pipelines Limited Company and another

J U D G M E N T

Date of hearing:	03.09.2025
Petitioner by:	Ch. Muhammad Shahid Iqbal, Advocate.
Respondent No.1 by:	Mr. Bashir Ahmad Mirza, Advocate.

MALIK WAQAR HAIDER AWAN, J:- Through this constitutional petition, petitioner has called in question the legality and validity of order dated 15.07.2025 passed by learned Additional District Judge/Gas Utility Court, Hafizabad (hereinafter referred to as “**Gas Utility Court**”) whereby his application for framing of specific issue *qua* limitation has been dismissed.

2. Learned counsel for the petitioner contends that under Order XIV CPC, it is duty of the Court to frame issues according to pleadings of the parties. Argues that petitioner took a specific plea (objection No.8 in his written statement) regarding limitation but learned Gas Utility Court, while ignoring this fact, refused to frame a proper issue *qua* limitation inspite of moving an application in this regard. Submits that although issue regarding Order VII Rule 11 CPC has been framed but the same having different consequences and bearings as compared to issue of limitation. Places reliance on the judgment reported as Sui Southern Gas Company Limited through Sub-Attorney v. Irshad Ali Bhutto and another (PLD 2024 Sindh 205) to emphasize that the

Limitation Act, 1908 (hereinafter called “**Act 1908**”) is applicable to the facts of present case as neither the Gas (Theft Control and Recovery) Act, 2016 (hereinafter called “**Act 2016**”) provides any limitation for filing of suits nor there is any specific provision of limitation regarding recovery of arrears by a Gas Utility Company, thus Article 181 of the Act 1908 would be applicable wherein period of limitation has been provided as 03 years from the date when right to sue accrues. To justify filing of constitutional petition, learned counsel has relied upon the judgment reported as Muhammad Waqas v. Judge Family Court, Lodhran and 4 others (2020 CLC 680) to stress that wrong framing of issues strikes at the root of the case and in order to question the dismissal of application for framing of correct issues, filing of writ petition is an adequate remedy.

3. Conversely, learned counsel appearing on behalf of respondent No.1/SNGPL, while referring to Section 13(6) of the Act 2016, seriously challenges the maintainability of this petition filed against an interlocutory order. Relies upon order dated 09.02.2022 passed by this Court in Writ Petition No. 52619/2019 titled Syed Liaqat Hussain Shah v. SNGPL and others to highlight that when a special statute does not specifically provide right of appeal, review or revision against an order accepting or rejecting an application for leave to defend, or any interlocutory order of the Gas Utility Court, which does not dispose of the entire case, a constitutional petition is also not maintainable being against the intention of legislature. Further submits that framing of issue *qua* limitation would be in negation of Section 20 of the Act 2016 which envisages that no time bar shall apply in respect to ordering recovery of arrears of dues of any kind. He relies upon judgment dated 13.03.2020 passed by the Peshawar High Court, Peshawar in FAO No. 108-P/2019 titled Sui Northern Gas Pipe Lines v. Ghulam Hazrat wherein Gas Utility Court, Nowshera rejected the plaint while allowing application under Order VII Rule 11 CPC and the Peshawar High

Court, Peshawar allowed the appeal and remanded the case while setting aside the order of learned trial court *qua* rejection of plaint with the direction to decide the matter after recording of evidence.

4. Heard. Record perused.

5. At the very inception, it is imperative to deal with the objection raised regarding maintainability of the instant constitutional petition. It is not the rule of thumb that against an interlocutory order, where a statute bars an appeal, review or revision, constitutional petition is not maintainable. It is for the Court to decide regarding maintainability of constitutional petition, seized of the matter, to appreciate whether the order is hitting the root of the case and if the defect is not rectified, the trial may become defective, and upon its conclusion the appellate court has to remand the case to cure the defect. In my view, it would be sheer wastage of public time and would cause delay in the outcome of final decision.

6. It is trite law that Courts are vested with the jurisdiction to decide rightly and there is no cushion for the old view that Courts have the jurisdiction to decide “rightly or wrongly”. Reliance is placed upon Utility Stores Corporation of Pakistan Limited v. Punjab Labour Appellate Tribunal and others (PLD 1987 SC 447).

7. Coming to the facts of present case which revolves around framing of issue with regard to limitation. Sections 20 and 31 of the Act 2016 are relevant which are reproduced hereunder:-

20. Penalties not to affect other liabilities.-- *The penalties imposed under sections 14 to 19 shall be in addition to, and not in derogation of, any liability in respect of the payment of compensation which the offender may have incurred and no time bar shall apply in respect to either granting compensation or ordering recovery of arrears of dues of any kind or in respect to initiating proceedings in this regard.*

(Emphasis supplied)

31. Act to override other laws.-- *The provisions of this Act shall have effect notwithstanding anything to the contrary contained in any other law for the time being in force.*

8. Present proceedings emanate out of dismissal of application for framing of issue of limitation by the Gas Utility Court. To appreciate the law and facts involved in this case, the Preamble of the Act 2016 is reproduced below:-

*An Act to provide for prosecution of cases of gas theft and other offences relating to gas and to provide a procedure **for recovery of amounts due**;*

*WHEREAS it is expedient to prosecute cases of gas theft and other offences relating to gas and to provide for a procedure for **expeditious recovery of amounts due**, value of gas, fines, penalties and other outstanding amounts payable and sums due to Gas Utility Companies and for matters ancillary and related thereto;*

(Emphasis added)

9. While having a bird's eye view of the Preamble of the Act 2016, it becomes crystal clear that it is a special law made for specific purposes. Section 20 of the Act 2016 specifically provides that no time bar shall apply in respect to ordering recovery of arrears of dues of any kind or in respect to initiating proceedings in this regard. Section 31 of the Act 2016 further stimulates the intention of the legislature.

10. The Preamble of the Act, 2016 articulates the purpose the legislature intended to achieve. The rudimentary rule for interpretation of a statute is to remain faithful to the intent of the lawmaker and adopt an interpretation which supports the attainment of the statute's objective. The spirit of Act 2016 is expeditious recovery of amounts due against defaulters. I am clear in my mind that defaults made by the consumers would not become unrecoverable with the afflux of time. For this very purpose, Section 20 of the Act 2016 has been inserted according to which limitation does not come in the way of Gas Utility

Companies, defined in Section 2(h) of the Act 2016, for recovery of any outstanding amounts payable by the consumers.

11. In addition to above, it would not be out of context to mention here that no one can get benefit of his own wrong and a Gas Utility Court, established under Section 3 of the Act 2016 cannot be restrained to proceed in a suit for recovery against a defaulter as the object and purpose of legislating the Act 2016 is to recover the defaulted arrears.

12. It is a well celebrated Latin maxim “*ejusdem generis*” and “*expressio unius est exclusio alterius*” which means that when two rules or laws exist, one general and one specific, the specific rule takes precedence over general rule. This principle has been comprehensively discussed by the august Supreme Court of Pakistan in judgment reported as *Sui Northern Gas Pipelines Ltd. (SNGPL), Islamabad v. Messrs S.K. Pvt. Limited and others* (2025 SCMR 570).

13. This view has been further fortified by the august Supreme Court of Pakistan through its recent judgment reported as *Ahsan Ali Dawach v. The State through Chairman NAB and others* (2025 SCMR 1041) wherein it has been held that when special law and general law come into collision, the special law prevails, however, in case of deviation, rule of harmonious construction may be adopted. For convenience, relevant portion of the esteemed judgment is reproduced hereunder:-

*Sure enough, the aphorism “special laws” is meant to refer to laws regulating specific subjects and stipulating their own limitations and conditions to be applied. At the same time, it is also a well-known interpretation of law that **special law prevails and dominates over a general law**. However, while resolving the issue by the Courts on whether a statute is a special or general law, the crucial consideration must be the **legislative intent**, and of course in case of divergence, the rule of harmonious construction may be adopted.*

(Underlining is mine for emphasis)

14. From the above, it is clear and manifest that bar of limitation does not apply for recovery of arrears of dues of any kind, thus framing of issue *qua* limitation would be going against the intention of framers of the statute and would be a futile exercise. Even otherwise, learned trial court has framed an issue regarding maintainability of the suit under Order VII Rule 11 CPC which is wider in sense and covers all the legal permissible objections.

15. During the course of arguments, learned counsel for the petitioner has stressed on the point that Article 181 of the Act 1908 would be applicable when no limitation is provided in the Act 2016. I am afraid that the contention of learned counsel does not hold water for the reason that special laws have overriding effect over general laws when both are in conflict as already settled by the Apex Court.

16. So far as the case of *Sui Southern Gas Company Limited through Sub-Attorney* (supra) is concerned, I respectfully differ with the conclusion drawn therein as the same is against the provisions of special statute applicable in this case, which specifically provides that no time bar shall apply in respect to ordering recovery of arrears of dues of any kind or in respect to initiating proceedings.

17. As regards the case of *Muhammad Waqas* (supra), there is no cavil to the proposition discussed in it but the same is distinguishable being outcome of different facts and circumstances, therefore, not helpful for the petitioner.

18. Sliced from whichever angle, learned counsel for the petitioner has failed to pinpoint any illegality, legal infirmity or perversity in the impugned order, therefore, no ground for interference is made out, as a sequel to which, this constitutional petition fails and the same is **dismissed.**

19. Before parting with the judgment, it would be expedient to observe that the Gas Utility Court, being a special court, instead of reproducing the provisions of Order VII Rule 11 CPC, was supposed to refer to and rely upon the relevant provisions i.e. Sections 20 and 31 of the Act 2016 (germane to the facts of present case) to make the order more elaborative, self-explanatory and unequivocal.

20. Since suit for recovery of Rs.1,505,024/- was instituted by respondent on 21.10.2020 and presently, the case is fixed for evidence of petitioner/defendant, therefore, the Gas Utility Court is expected to decide the *lis* in accordance with law expeditiously in terms of Section 9 of the Act 2016 (wherein a period of 90 days is provided for decision of a suit in which leave to defend has been granted to the defendant).

(MALIK WAQAR HAIDER AWAN)
JUDGE

Signed
04.09.2025

Abis Ali

APPROVED FOR REPORTING

JUDGE